

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Raquel Velasquez	Team: Squad #11	CCRB Case #: 201407753	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 07/21/2014 1:18 AM	Location of Incident: § 87(2)(b)	Precinct: 75	18 Mo. SOL 1/21/2016	EO SOL 1/21/2016	
Date/Time CV Reported Wed, 07/30/2014 4:56 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 07/30/2014 4:56 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Giovanni Fini	17137	946988	075 PCT
2. POM Michael Kaminsky	05135	944689	075 PCT
3. POM Frank Vera	12899	935929	075 PCT
4. POF Genine Oneill	02772	946070	075 PCT
5. SGT Justin Simms	05571	937542	075 PCT
6. POM Michael Bernier	05141	926569	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Frank Vera	Abuse: PO Frank Vera entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
B.POF Genine Oneill	Abuse: PO Genine Oneill entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
C.POM Michael Kaminsky	Abuse: PO Michael Kaminsky entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
D.POM Giovanni Fini	Abuse: PO Giovanni Fini entered § 87(2)(b) in Brooklyn.	§ 87(2)(b)
E.SGT Justin Simms	Abuse: Sgt. Justin Simms authorized the search of § 87(2)(b) in Brooklyn.	§ 87(2)(b)
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

On July 21, 2014, at approximately 1:18 a.m., § 87(2)(b) and § 87(2)(b) were in § 87(2)(b)'s apartment located at § 87(2)(b) in Brooklyn. § 87(2)(b) heard a knock on the door and went to answer. PO Frank Vera, PO Genine O'Neill, PO Michael Kaminsky, and PO Giovanni Fini from the 75th Precinct, entered the apartment (**Allegations A, B, C, and D**). Sgt. Justin Simms, from the 75th Precinct, authorized the search of the apartment (**Allegation E**). Neither § 87(2)(b) nor § 87(2)(b) were arrested or issued summonses. A part of this incident was recorded via cellphone by § 87(2)(b) (**Board Review 1; Board Review 2 for transcription of the video**).

Mediation, Civil and Criminal Histories

This case was not suitable for mediation. § 87(2)(b) and § 87(2)(b) did not file a Notice of Claim regarding this incident (**Board Review 3**). [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) and § 87(2)(b) (**Board Review 5**).
- PO Vera has been a member of the NYPD for 10 years and there are no substantiated CCRB allegations against him.
- PO O'Neill has been a member of the NYPD for 7 years and there are no substantiated CCRB allegations against her.
- PO Kaminsky has been a member of the NYPD for 7 years and there is one substantiated CCRB allegations against him. In case number 201106834, an allegation of abuse of authority (retaliatory summons) was substantiated. The CCRB recommended command discipline; The NYPD did not issue any penalty due to the statute of limitations expiring.
- PO Fini has been a member of the NYPD for 6 years and there are no substantiated CCRB allegations against him.
- Sgt. Simms has been a member of the NYPD for 10 years and there are no substantiated CCRB allegations against him.
- PO Bernier has been a member of the NYPD for 14 years and there are no substantiated CCRB allegations against him.

Finding and Recommendations

Allegations Not Pleaded:

Vehicle search, threat of arrest, search of apartment: § 87(2)(b) stated that he told the officers that he did not live in the neighborhood and that if he had a gun the only place he would have to hide it would be in his apartment or his car. He told the officers that they could search his car and offered them his car keys. Lastly, § 87(2)(b) alleged that PO Vera told § 87(2)(b) that if a gun was recovered in § 87(2)(b)'s apartment, they would arrest § 87(2)(b). The video shows that Sgt. Simms said, "My worry right now is, if he's right and you did have a gun and you put it on this poor lady, she's gonna get locked up for having a gun... If there's a gun in there and she's trying to hide it, she's going. That's three years." § 87(2)(g)

Explanation of Subject Officer Identification

Sgt. Simms stated that § 87(2)(b) told the officers that they could go inside the apartment and check for a firearm, so although § 87(2)(b) said they could not search, because § 87(2)(b) said that they could, the officers searched the apartment, while Sgt. Simms stayed with § 87(2)(b) to keep her calm. § 87(2)(g)

Allegation A: PO Frank Vera entered § 87(2)(b) in Brooklyn.

Allegation B: PO Genine O'Neill entered § 87(2)(b) in Brooklyn.

Allegation C: PO Michael Kaminsky entered § 87(2)(b) in

Allegation D: PO Giovanni Fini entered § 87(2)(b) in Brooklyn.

It is undisputed that § 87(2)(b) called 911 and reported that a male inside § 87(2)(b) § 87(2)(b) menaced him with a gun (**see Board Review 7**). § 87(2)(b) had an ongoing dispute with § 87(2)(b) and had filed a complaint against him several days prior. PO Vera, PO O'Neill and PO Kaminsky went to § 87(2)(b)'s apartment while PO Fini remained with § 87(2)(b). The video footage does not capture the officers' entry into the apartment and does not show PO Kaminsky or PO Fini inside the apartment (**Board Review 1**).

§ 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) answered the door while § 87(2)(b) remained in bed. § 87(2)(b) told PO Vera that she was alone, and denied PO Vera's request to come inside. PO Vera pushed open the door, walked into the apartment, and asked for consent to search, which § 87(2)(b) denied. § 87(2)(b) believed that PO O'Neill, PO Kaminsky and PO Fini also entered her apartment but was unsure and did not remember much of the incident due to the stress. § 87(2)(b) was handcuffed and led him towards the entrance of the apartment. § 87(2)(b) stated that none of the officers asked for permission to enter. § 87(2)(b) and § 87(2)(b) denied giving the officers permission to enter. (see § 87(2)(b)'s and § 87(2)(b)'s statements).

PO Vera and PO Kaminsky believed that § 87(2)(b) answered the door; PO O'Neill did not recall who answered the door **(see PO Vera's, PO O'Neill's and PO Kaminsky's statements)**. PO Vera and PO O'Neill stated that they did not enter the apartment until Sgt. Simms arrived **(see PO Vera's and PO O'Neill's statements)**. PO Kaminsky acknowledged entering the apartment **(see PO Kaminsky's statement)**. PO Fini did not recall entering the apartment **(see PO Fini's statement)**. According to Sgt. Simms, officers that he did not recall were inside § 87(2)(b)'s apartment when he arrived and § 87(2)(b) was standing in the hallway **(see Sgt. Simms' statement)**.

People v. McBride, 14 N.Y.3d 440 (2010), held that officers may enter a dwelling without a warrant if they have probable cause to believe the suspect committed a crime and exigent circumstances justify the warrantless entry. The following factors are considered in determining whether exigent circumstances are present: (1) the gravity or violent nature of the offense; (2) whether the suspect is reasonably believed to be armed; (3) a clear showing of probable cause to believe that the suspect committed the crime; (4) strong reason to believe that the suspect is in the premises being entered; (5) a likelihood that the subject will escape if not swiftly apprehended; and (6) the peaceful circumstances of the entry (**Board Review 12**).

[REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]
 [REDACTED]

Allegation E: Sgt. Justin Simms authorized the search of § 87(2)(b) in Brooklyn.

It is undisputed that PO Vera and PO O'Neill searched § 87(2)(b)'s apartment and that Sgt. Simms was present for the search. According to PO Vera, PO O'Neill, PO Kaminsky, and Sgt. Simms, § 87(2)(b) verbally granted the officers consent to search the apartment, although § 87(2)(b) did not grant consent (**see PO Vera's, PO O'Neill's and PO Kaminsky's statements**). Video footage shows PO Vera and PO O'Neill searching § 87(2)(b)'s apartment, while § 87(2)(b) is actively objecting, as Sgt. Simms walks around the apartment (**Board Review 1**). The video footage clearly shows Sgt. Simms' presence while PO Vera and PO O'Neill search § 87(2)(b)'s apartment for approximately eight minutes, while § 87(2)(b) repeatedly stated that she did not consent to the search.

Georgia v. Randolph 547 U.S. 103 (2006) stated that consent given by one occupant is not valid in the face of a refusal of another physically present occupant (**Board Review 9**). *People v. Jenkins*, 24 N.Y.3d 62 (2014), held that, even after exigent circumstances justified the entry of a dwelling after witnessing a man with a firearm flee into an apartment, once the officers have gained control of the alleged defendant, any exigency has ceased and a warrantless search for a weapon is not permitted (**Board Review 13**).

§ 87(2)(g)

§ 87(4-b), § 87(2)(g)

Pod: 11

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date